

MAINS MASTER PROGRAM (MMP) 2024

ETHICS – 14

Ethics, Integrity & Aptitude – Case Studies Approach

- What is a case study?
- Approach for solving case studies
- Important laws & regulations that can guide in solving case studies
- Ethical & Moral Principles that guide decision making
- Practice case studies

What is a case study?

- A case study is a **decision-making problem** which may contain **one or more ethical issues & dilemmas** in arriving at a solution and may also involve **several stakeholders** who may be affected by the **decision or the course of action**.

Approach for solving case studies

- Identify the core & peripheral issues
- Recognise various stakeholders
- Status of the decision maker
- Basic legal & Constitutional mechanisms
- Ethical & moral principles consideration
- Evaluating various alternative decisions & course of actions
- Final decision [Practicality]

Important Laws that can aid in decision making

- Prevention of corruption Act, 1988
- Whistle blowers' protection Act, 2014
- Sexual Harassment of women at workplace Act, 2013
- Consumer protection Act, 2019
- Environmental protection Act, 1988
- Civil Rights Act, 1976
- Scheduled caste & scheduled tribes atrocities Act, 1988
- Companies Act, 2013
- Code of Ethics & Code of conduct

Ethical and Moral principles & certain key words that can be used in case studies.

- Deontological ethics
- Utilitarianism
- Ethics of care
- Prima facie principles – respect to Autonomy, beneficence, non-maleficence, Justice & fairness etc.
- Voice of Conscience

- Crisis of conscience
- Conflict of conscience
- Conflict of Interest
- Courage of conviction
- Moral Integrity
- Professional Competence
- Neutrality & Objectivity
- Selflessness
- Transparency & Accountability
- Leadership
- Work Culture

Practice case study – 1

Sunil is a young civil servant and has a reputation for his competence, integrity, dedication, and relentless pursuit of difficult and onerous jobs. Considering his profile, he was picked up by his bosses to handle a very challenging and sensitive assignment. He was posted in a tribal dominated district notorious for illegal sand mining.

Excavating sand from river belt and transporting through trucks and selling them in black market was rampant. This illegal sand mining mafia was operating with the support of local functionaries and tribal musclemen who in turn were bribing selected poor tribals and had kept the tribals under fear and intimidation.

Sunil being a sharp and energetic officer immediately grasped the ground realities and the modus operandi followed by the mafia through their devious and dubious mechanism. On making inquiries, he gathered that some of their own office employees are in hand and glove with them and have developed close unholy nexus. Sunil initiated stringent action against them and started conducting raids on their illegal operations of movement of trucks filled with sand.

The mafia got rattled as not many officers in the past had taken such strong steps against the mafia. Some of the office employees who were allegedly close to mafia informed them that the officer is determined to clean up the mafia's illegal sand mining operations in that district and may cause them irreparable damage.

The mafia turned hostile and launched counter-offensive. The tribal musclemen and mafia started threatening him with dire consequences. His family (wife and old mother) were stalked and were under virtual surveillance and thus causing mental torture, agony, and stress to all of them. The matter assumed serious proportions when a musclemen came to his office and threatened him to stop raids, etc., otherwise, his fate will not be different than some of his predecessors (ten years back one officer was killed by the mafia).

- (a) Identify the different options available to Sunil in attending to this situation.
- (b) Critically evaluate each of the options listed by you.
- (c) Which of the above, do you think, would be the most appropriate for Sunil to adopt and why?

Approach

Sunil being an officer known for his integrity finds himself in a high-pressure situation with significant personal and professional risks, due to the illegal sand mining mafia operating in the tribal district. To approach the situation effectively, he has multiple options to consider, each with potential outcomes and consequences.

a) Options Available to Sunil

- 1) **Continue with the Raids and Intensify Crackdown:** Sunil can choose to remain undeterred, intensify his crackdown on the mafia, and continue enforcing strict action without compromise.
- 2) **Seek Higher Authorities' Intervention and Security:** He can escalate the issue to his superiors or higher government officials, requesting additional support in the form of law enforcement, protection, and resources.
- 3) **Step Down or Request a Transfer:** Sunil could request a transfer to avoid escalating the threat against his family and himself, considering this as an option to ensure personal safety.
- 4) **Engage with Local Tribals and Build Community Trust:** Sunil could focus on engaging with the tribal communities to win their support, neutralizing the mafia's influence by empowering locals and addressing their concerns.
- 5) **Relocate His Family Temporarily for Safety:** He could arrange for his family to stay away from the district temporarily, prioritizing their safety while he continues his work.

b) Critical Evaluation of Each Option

- 1) **Continue with the Raids and Intensify Crackdown:**
 - **Pros:** Upholds his integrity and mission to root out corruption. Sends a strong message of law enforcement.
 - **Cons:** May escalate threats from the mafia. His family is at risk, and it could result in personal harm or assassination attempts, given the mafia's violent history.
- 2) **Seek Higher Authorities' Intervention and Security:**
 - **Pros:** It may provide him with police protection and additional resources to handle the mafia's operations.
 - **Cons:** There is no guarantee the intervention will be swift or effective. If authorities are also complacent, the mafia's power might not diminish.
- 3) **Step Down or Request a Transfer:**
 - **Pros:** Ensures the safety of his family and himself by avoiding confrontation with the mafia.
 - **Cons:** Sends a message of defeat and allows the mafia to continue its operations unchecked. It may tarnish his reputation as an officer committed to integrity.

4) Engage with Local Tribals and Build Community Trust:

- **Pros:** Could create long-term stability by weakening the mafia's influence on the ground. By empowering the locals, he might neutralize the mafia's hold.
- **Cons:** Time-consuming process and may not immediately alleviate the threat from the mafia. Tribal leaders may fear retribution from the mafia and may not support him.

5) Relocate His Family Temporarily for Safety:

- **Pros:** Protects his loved ones from immediate harm, allowing Sunil to focus on the task at hand without worrying about their safety.
- **Cons:** May be seen as a temporary solution and does not address the root issue of the mafia's intimidation tactics.

c) Most Appropriate Option:

- The most appropriate course of action for Sunil is **Option 2: Seek Higher Authorities' Intervention and Security**, combined with **Option 5: Relocate His Family Temporarily**. Sunil can also supplement these options with **option 4** in order to find a long-term solution by building the confidence of the locals & weakening the mafia influence.

Practice case study – 2

You are the chief controller of the competitive examinations conducted by the government through which students get admission into various medical colleges based on merit. Recently in one such examination you come across various news reports alleging paper leaks at some examination centres, impersonation in certain cases and various other malpractices like cheating during the examination process.

The integrity of the entire examination process is questioned by the media and there are also a lot of protests happening around the country supported by various opposition parties. Under such circumstances you get a call from the HRD ministry seeking a report on this matter and the secretary as per the directions of the minister concerned gives you full authority to handle this matter.

You are an honest & straight forward officer known for your integrity. You have made sure everything to make the examination process is conducted in a fair manner allowing the brightest of candidates to secure their seat through merit. As per the report you have received after the examination was conducted is contrary to what is reported in the media.

Under such circumstances,

- a) As a chief controller of examination what would be your course of action under the given scenario?
- b) What are the various ethical issues in the case if the allegations are true?
- c) What kind of precaution would you take to avoid such things in future?

Approach

As the chief controller of competitive examinations, the situation at hand presents a significant challenge, where the credibility and the integrity of the examination process is being questioned. It is essential to act decisively and with transparency & moral integrity to uphold the trust in the system.

a) Course of Action as the Chief Controller of Examination:

- 1. Conduct a Thorough Investigation:** I would immediately set up an independent, high-level inquiry to thoroughly investigate the allegations of paper leaks, impersonation, and other malpractices. The inquiry committee should consist of credible individuals from various departments, including law enforcement, cybersecurity, and education experts, to ensure impartiality.
- 2. Assess and Cross-Verify the Media Reports:** Since the report I received after the examination contradicts the media claims, I would cross-verify all the information. If needed, I would reach out to the examination centres where the irregularities are alleged and gather evidence, including CCTV footage, attendance records, and testimonies from invigilators and candidates.
- 3. Communicate transparently with the Public:** I would address the media and the public, ensuring full transparency. The message would be that the matter is under investigation, and any irregularities, if found, will be dealt with severely. This step will calm public protests and opposition while showing that the administration is taking the matter seriously.
- 4. Prepare a Preliminary Report for the Ministry:** Based on the findings so far, I would prepare a detailed preliminary report for the HRD Ministry, including the steps taken to address the allegations, the ongoing investigations, and any preliminary conclusions. This report would show that due diligence is being conducted to protect the integrity of the process.
- 5. Take Immediate Action if Malpractices are proven:** If the investigation reveals substantial evidence of paper leaks, impersonation, or cheating, immediate and appropriate action must be taken. This could include:
 - ✓ Cancellation of the examination at the affected centres
 - ✓ Lodging FIRs against individuals involved.
 - ✓ Blacklisting of any examination centres found complicit.
 - ✓ Re-examination for candidates in affected centres.

b) Ethical Issues in Case the Allegations are True:

- 1. Fairness and Integrity of the Examination Process:** If the allegations of paper leaks or cheating are true, it undermines the fairness of the examination, which is designed to select students based on merit.
- 2. Corruption and Collusion:** If examination centres, officials, or invigilators were involved in malpractice, it raises the issue of corruption within the system. Such collusion damages public trust and institutional integrity.
- 3. Transparency and Trust:** The lack of transparency in the entire examination process could erode public trust. There is an ethical obligation to address the situation openly and honestly to restore confidence in the system.

4. **Accountability and Responsibility:** If malpractice occurred, it is an ethical failure in the oversight and management of the examination process. Those responsible must be held accountable for ensuring that the examination was not conducted properly.

c) **Precautions to Avoid Such Issues in the Future:**

1. **Enhanced Security Measures for Question Papers:** Strengthen the protocols for printing, storing, and distributing examination papers, such as encrypting the digital format of question papers and ensuring their delivery is tightly monitored and secure
2. **Use of Technology for Identity Verification:** Implement biometric verification of candidates (fingerprint or facial recognition) at examination centres to prevent impersonation.
3. **CCTV Surveillance in Examination Centres:** Mandate that all examination centres are equipped with CCTV cameras to monitor the examination process and provide evidence in case of any reported malpractice.
4. **Randomized and Multiple Sets of Question Papers:** Introduce the use of multiple sets of question papers in randomized order across different centres. This would make it difficult for anyone paper to be leaked or for impersonators to have prior knowledge of the questions.
5. **Strict Penal Actions for Malpractice:** Enforce strict penalties for examination centres, officials, or candidates found engaging in malpractices. This includes blacklisting of centres, debarment of candidates, and criminal prosecution where applicable.
6. **Training and Awareness Programs for Examination Officials:** Regularly train invigilators and examination centres officials on ethical conduct, vigilance, and their responsibilities. Ensure they understand the seriousness of their role in preventing cheating and malpractices.
7. **Public Grievance Redressal System:** Establish a transparent and accessible system where candidates and the public can report concerns regarding the examination process. These grievances should be handled swiftly and impartially to maintain trust in the system.

Practice case study – 3

You are an employee of a leading multinational company called ZYX Pharmaceuticals which has a good reputation at the international level. Your company is a leading manufacturer of various drugs of high value known for their effectiveness in responding to various diseases. Presently, the research and development team are in the process of conducting clinical trials for particular type of virus called Mpox. You are the deputy chief of the project & the results of the clinical trials are mixed and your doubtful about the results and the efficacy of the medicine developed to treat the Mpox virus. However, there is lot of pressure from the company management to complete the trials & approve the medicine as it would give them a competitive edge in the market. Under such circumstances your chief is calling you & asking you to manipulate the findings of the clinical trials which would help in getting the necessary regulatory approval and in rolling out the drug at the earliest. He also hints there is a clear direction from the senior management in this regard and his future promotion depends on the outcome of this project. You have serious ethical dilemma after hearing this from your chief thinking of the potential negative consequences of the action.

- a) What are the various options available to you under the present circumstances?
- b) Discuss their pros & cons of the options.

Approach

The situation faced as the deputy chief of a clinical trial project at ZYX Pharmaceuticals presents a serious ethical dilemma. The pressure from senior management to manipulate the clinical trial results for regulatory approval of the drug for Mpox creates a potential conflict between professional & Moral integrity and organizational pressure

a. Options Available:

1. **Manipulate the Data as Requested by the Chief:** You could comply with the chief's request and alter the findings to ensure the drug gets regulatory approval.
2. **Refuse to Manipulate the Data and Report the Issue Internally:** You could refuse the request and report the ethical breach to higher authorities or the company's ethics committee.
3. **Resign from the Project or Company:** You could choose to step down from the project or even resign from the company entirely, avoiding complicity in unethical practices.
4. **Raise Concerns and Request Additional Time for Trials:** You could express your concerns to your chief and senior management, asking for additional time to complete the trials with more robust data to ensure the drug's safety and efficacy.
5. **Whistle blow Externally to Regulatory Authorities:** If internal escalation does not work, you could report the issue to external regulatory authorities or similar bodies, to prevent the drug from being approved.

b. Pros and Cons of Each Option:

1. **Manipulate the Data as Requested by the Chief:**
 - ✓ **Pros:** Compliance to senior management & positive relationship with the chief will help avoiding career risk plus potential profit for the company.
 - ✓ **Cons:** Manipulation of data will result in moral & professional compromise risking the life of the innocent people, potential long term negative consequences due to loss of reputation in addition to legal consequences.
2. **Refuse to Manipulate the Data and Report the Issue Internally:**
 - ✓ **Pros:** The action will be in line with professional & moral integrity, avoidance of potential legal consequences to the company.
 - ✓ **Cons:** Potential risk to your career & may result in disappointment & potential loss in profit to the company.
3. **Resign from the Project or Company:**
 - ✓ **Pros:** Avoids direct conflict with senior management further in line with professional integrity.
 - ✓ **Cons:** Does not address the underlying issue at hand & there is a possibility of others manipulating the trials & could also lead to personal instability due to the resignation.

4. **Raise Concerns and Request Additional Time for Trials:**

- ✓ **Pros:** Possibility of have better results in trials, avoid unethical means & in line with professional integrity.
- ✓ **Cons:** The Company may loose on the competitive edge, possibility of the senior management turn hostile.

5. **Whistle blow Externally to Regulatory Authorities:**

- ✓ **Pros:** Prevents the drug from getting approval without proper trials ensuring the safety of people, may lead to action against erring officials.
- ✓ **Cons:** Personal cost of being removed from the job, potential action against company could affect other employees further whistle blowing may not result in immediate action against the issue.

Practice Case Study – 4

Kavitha is a high-ranking public official working in the Ministry of External Affairs. She has a solid reputation for professionalism, competence, and integrity who is also the head of the internal complaints committee related to sexual harassment at workplace. Recently, she has been approached by several female colleagues, who confided in her that they have experienced inappropriate behaviour and sexual harassment from Ashok, the department head. Although none of them have made a formal complaint but from various sources you get to understand the unofficial complaints are prima facie true.

Ashok holds a powerful position and has strong political connections, making him seemingly untouchable. These women allege that Ashok harassment ranges from inappropriate comments and advances to unwanted physical contact during meetings and official events. Fearing retaliation, including career setbacks or job loss, none of the victims have officially lodged complaints, although they have mentioned their concerns to Kavitha in confidence.

Kavitha is deeply troubled by these reports, but she is also concerned about her own position. Ashok has a direct influence over her future promotions and professional trajectory. She knows that if she raises these issues or supports the women in filing a formal complaint, she risks her own career. The organizational culture in the ministry is known for its silence and complicity regarding such matters, with no history of such complaints being handled openly.

- a) What do you think Kavitha should do under the present circumstances?
- b) What precautionary measure Kavitha can take to prevent & address such issues in the future?

Approach

Kavitha is facing a classic ethical dilemma, where her responsibility as the head of the internal complaints committee is at odds with her own professional interests. In this situation, Kavitha's actions should prioritize the safety and well-being of the victims while upholding her ethical duty to create a fair and just work environment.

- a) **Kavitha should encourage the Victims to Lodge Formal Complaints** while simultaneously starting an informal inquiry to gather more evidence. In the process, Kavitha can also document all the complaints and evidence she could collect against Ashok. If she has sufficient evidence in the

absence of a formal complaint, she can report the matter to the concerned secretary, or the minister concerned keeping in the loop the bodies like National Commission for Women.

If appropriate response is not coming through the internal mechanism, she can also consider whistle blowing of the incidents. Kavitha, as the head of the internal complaints committee, is responsible for ensuring that the workplace is safe for all employees, and it is part of her Professional & moral duty to ensure the same.

b) Precautionary measures to prevent sexual harassment

- ✓ Strengthening the Internal Complaints Mechanism
- ✓ Awareness and Training Programs
- ✓ Establish a Zero-Tolerance Policy towards sexual harassment
- ✓ Anonymous Reporting & surveillance Mechanism
- ✓ External Audit of the Complaints Committee